

LAW AND MOTION TENTATIVE RULINGS

DATE: JULY 1, 2026 TIME: 8:30 A.M.

No. 25CV01976

CAPITAL ONE, N.A. v. DOMINGUEZ

**PLAINTIFF'S MOTION FOR ORDER THAT MATTERS IN REQUESTS FOR
ADMISSIONS OF TRUTH OF FACTS BE DEEMED ADMITTED**

The unopposed motion is granted.

This is a limited jurisdiction collections case. The complaint alleges breach of contract and seeks \$4,607.79 in damages against defendant, who filed an answer on August 22, 2025.

On October 28, 2025, plaintiff served requests for admission set one, on defendant, attached to the declaration of Michaela Cox as Exhibit 1. Plaintiff states defendant has failed to respond to the requests. (Decl. of Cox at ¶ 3.) The requests were served on defendant at 244 Crestview Drive, Watsonville, CA, which is the same address defendant used when filing his answer.

“If a party to whom requests for admission have been directed fails to serve a timely response, the requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction pursuant to Section 2033.030 of the Code of Civil Procedure.” (Code Civ. Proc., § 2033.280, subd. (b).) Monetary sanctions are mandatory if requested. (Code Civ. Proc., § 2033.280, subd. (c).)

Therefore, the matters specified in requests for admission, set one, attached to the Declaration of Ms. Cox as Exhibit 1, are deemed admitted. (Code Civ. Proc., § 2033.280, subd. (b).) This will be the order of the Court unless defendant serves, before the hearing on the motion, a proposed response to the requests for admissions that is in substantial compliance with Code of Civil Procedure section 2033.220. Plaintiff did not request sanctions.